

02:00 PM **LINE 6**

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL.

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO SE
DANIELLE K. LEWIS

Plaintiff's Motion to Compel Further Responses Regarding the Defendant's Responses to Special Interrogatories Set 14

TENTATIVE RULING:

Initially, the court notes that plaintiff has not provided the complete address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, CA 94401. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Plaintiff Kevin Ramos' *1st Amended ... Motion to Compel Further Responses Regarding the Defendant's Responses to Special Interrogatories Set 14* (Motion) is **DENIED**.

A. Background

In his Second Amended Complaint (SAC), plaintiff alleges that on May 17, 2024, he suffered damages from having been assaulted by a fellow passenger on a bus operated by defendant San Mateo County Transit District (SamTrans).

The court granted two anti-SLAPP motions brought against plaintiff's First Amended Complaint, one by SamTrans and defendants Steve Wagman and Marshall Rush (Order, signed on October 22, 2025), and the other by defendant Ann Lee (Order, signed on November 4, 2025), as to the second through eighth causes of action. The only remaining cause of action in the SAC for "Premises Liability/Negligent Security" is pled solely against SamTrans.

Defendant responded to plaintiff's plaintiff's Special Interrogatories (SROGs) Set #14 on January 20, 2026. (Ramos Decl., ¶ 2.) Plaintiff filed an initial version of this Motion on January 29, 2026. Plaintiff then filed a further version of this Motion on March 5, 2026, a further "First Amended" version of the Motion on March 25, 2026, and the instant Motion on June 22, 2026. Because June 22, 2026, was the last day to file a motion for hearing on July 15, 2026 (Code Civ. Proc., § 1005, subd. (b)), the court regards the moving papers filed on June 22, 2026, to be the operative motion, and disregards the earlier filed papers.

No proof of service has been filed. However, defendant has waived any defects in or irregularities of notice by filing an Opposition to the Motion. (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 929.)

Plaintiff brings the Motion seeking to compel defendant to respond further to his discovery requests.

B. The Motion Is Denied

Plaintiff seeks further responses to all of his Special Interrogatories (SROGs) Set #14, Nos. 1-4. Plaintiff asserts that his requests are relevant to supporting his claims, locating evidence and witnesses, and to supporting motions. He states that during the alleged incident on May 17, 2024, he “noticed dozens of San Mateo County Transit District employees and vehicles within 100 meters of the incident,” and each bus has cameras, etc., installed. (Ramos Decl. [SROGs 14], ¶ 6.)

Plaintiff asserts that defendant’s objections were irrelevant, unmeritorious, and unsupported. (Code Civ. Proc., § 2030.300, subd. (a)(3).)

A propounding party may move to compel further responses where the responding party’s responses are evasive or incomplete (Code Civ. Proc., § 2030.300, subd. (a)(1)), or incorporate meritless or overly general objections. (*Id.*, § 2030.300, subd. (a)(3).)

Having reviewed the moving, opposing, and reply papers, defendant’s objections appear to include irrelevancies. However, defendant’s objections that the discovery requests are overbroad are well taken.

SROGs Nos. 1 and 2 request the full names and other identifiers, respectively, for each of defendant’s employees who came within 100 meters of plaintiff’s bus during a two-hour window in which the incident occurred. The presence of every one of defendant’s employees within 100 meters of the bus on which plaintiff is alleged to have been assaulted along a ten-mile route from Belmont to Palo Alto over the course of two hours is overbroad, and as defendant asserts in Opposition, would compromise the privacy interests of bystanders. There is no reason to believe that someone who was in a bus or other vehicle owed by SamTrans within 100 meters of the alleged incident was a “witness” to the incident. Accordingly, the request is overbroad and does not “appear[] reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010; *Calcor*, *supra*, 53 Cal.App.4th at pp. 224-225.)

SROGs Nos. 3 and 4 request identifiers for each of defendant’s buses, and “non-bus vehicles” that came within 100 meters of the bus plaintiff was riding on during a 1.5-hour window and two-hour window, respectively, in which the incident occurred. Even if the request is limited to buses and other vehicles that are owned or operated by SamTrans, the request is overbroad and disproportionate. Accordingly, the request does not “appear[] reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010; *Calcor*, *supra*, 53 Cal.App.4th at pp. 224-225.)

In his Reply, plaintiff declares that the incident took place partly outside the bus: “At the Redwood City Transit, the attacker attacked me outside of a bus and caused us to obstruct several San Mateo County Transit District vehicles.” (Ramos Decl. in Reply, ¶ 5.) Plaintiff further declares that during the incident, he interacted with many of defendant’s employees, including at

least one supervisor with whom he spoke. (*Id.*, ¶¶ 6-7.) Further, plaintiff contends he made eye contact with many of defendant's employees who were driving defendant's vehicles. (*Id.*, ¶ 4.)

Plaintiff's discovery requests are not limited to identifying those with whom he claims to have interacted, such as the supervisor who arrived in response to the bus driver's call, and those at the transit station. Had the parties engaged in a meaningful meet-and-confer process, plaintiff could have refocused his discovery requests to seek the identities of the persons he claims to have encountered (e.g., the supervisor, or other SamTrans employees) as well as others in the actual vicinity of the bus who allegedly saw the incident (e.g., the bus driver or other passengers, or other SamTrans personnel at the transit center). During the meet and confer process, plaintiff should have narrowed his overbroad discovery requests to focus on obtaining evidence pertaining to actual witnesses to the alleged incident, as well as any policies, practices, or procedures relating to defendant's efforts to secure safe carriage for its passengers.

Discovery motions are disfavored; the parties are required to meet and confer in good faith to attempt to reach a compromise. "A reasonable and good-faith attempt at informal resolution entails something more than bickering with deponent's counsel Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439.) The discovery statutes "require[s] that there be a serious effort at negotiation and informal resolution." (*Id.*, at p. 1438.)

For these reasons, the Motion is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 7**

25-CIV-00670

ARNETTA BROWN VS. BURLINGTON COAT FACTORY OF TEXAS, INC.

ARNETTA BROWN
BURLINGTON STORES INC.

ARTHUR C. LIPTON
KEVIN J. GRAMLING

Plaintiff Arnetta Brown's Motion for Trial Preference

TENTATIVE RULING:

Plaintiff Arnetta Brown's motion for trial preference is **GRANTED**. The parties are ordered to appear, either in person or by Zoom, at a trial setting conference in Department 28 on July 29, 2026 at 9:00 a.m.

Defendant's objections to Dr. Brode's declaration are **OVERRULED**. Defendant has not challenged Dr. Brode's qualifications to render a medical opinion and although the declaration is ambiguous as to which "condition," i.e., COPD or arthritis in both knees, has resulted in "fatigue, pain, cognitive decline, and physical weakness," defendant has not shown that plaintiff does not have these symptoms or that COPD is not a progressive disease.

Defendant's objections to Ms. Brown's declaration are **OVERRULED** as to her statements regarding her symptoms. The objections are **SUSTAINED** to the extent that Ms. Brown purports to relate any symptoms to the incident.

A party to a civil action who is over 70 years of age may petition for trial preference, "which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (Code Civ. Proc., § 36, subd. (a).)

The court finds that Ms. Brown, the sole plaintiff in this action, "has a substantial interest in the action as a whole."

Ms. Brown is 80 years old. Her physician, Dr. Erica C. Brode, M.D., states that plaintiff suffers from chronic obstructive pulmonary disease, a progressive disease; fatigue, pain, cognitive decline, and physical weakness; severe arthritis in both knees; and in Dr. Brode's medical opinion, Ms. Brown's health and ability to meaningfully participate in this lawsuit are expected to deteriorate further. (Declaration of Dr. Erica C. Brode, M.D., ¶¶ 5-9; see also Declaration of Arnetta Brown, ¶¶ 5-12.) Based on the unrefuted evidence submitted, the court finds that Ms. Brown's health is such that a preference is necessary to prevent prejudicing her interest in the litigation.